IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON WEDNESDAY, THE 26TH DAY OF MARCH, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

CASE NO.: D21/036/24

THE REPUBLIC

VRS

1. FAISAL HADI

2. LOOKMAN COMPAORE

3. YAW ADDO

4. ABASS YAKUBU

5. BABAMU AT LARGE

6. HUSTLER AT LARGE

7. MOHAMMED AT LARGE

1ST, 2ND 3RD AND 4TH ACCUSED PERSONS PRESENT

5TH, 6TH AND 7TH ACCUSED PERSONS AT LARGE

CHIEF INSPECTOR VERONICA AMEDORME FOR THE REPUBLIC PRESENT

NII MARTEI KORLEY FOR 2ND AND 3RD ACCUSED PERSONS PRESENT

NO LEGAL REPRESENTATION FOR 1ST AND 4TH ACCUSED PERSONS

JUDGMENT

THE CHARGES

The accused persons herein have been arraigned before this Court with the 1st, 2nd and 4th accused persons charged with Conspiracy to commit crime namely Robbery; and Robbery contrary to ***sections 23(1) and 149 of the Criminal Offences Act, 1960 (Act 29).***

The 3rd accused person has been charged with stealing, contrary to ***section 124(1) of the Criminal Offences Act, 1960 (Act 29).*** The 5th, 6th and 7th accused persons are at large.

THE PLEA

The 1st, 2nd, 3rd and 4th accused persons pleaded not guilty to the counts under their respective charges after the charges had been read to them.

FACTS

The brief facts of the case as presented by the prosecution are that complainant Daniel Osei is a businessman and resides at Pokuase - Accra whereas 1st accused person, Faisal Hadi, is an okada rider and resides at Avenor, Accra, 2nd accused person Lookman Compaore is a trader and resides at Avenor, Accra, and 3rd accused person Abass Yakubu

is a mason and resides at Nima Accra. On 13/11/2023 at about 11:00, complainant who deals in mobile phones was at his shop selling at Kwame Nkrumah Circle. Al, A2 and A4 together with three others namely Babamu, Hustler and Mohammed who are on the run attacked complainant with cutlasses and scissors broke his show glass and packed complainant's 26 iPhones valued GHS34,600.00 and other 59 assorted mobile phones also valued GHS63,240.00 into a bag and took to their heels. Alarm was raised and they were pursued by some traders. A3 hit A1 with a bench and collected the bag containing the phones and handed over same to one Kojo Antwi a witness in this case. Kojo Antwi also thinking the bag belongs to A3 went and kept it with one Esther Benson @ Yaa Bor also a witness at her drinking spot. A4 later came to the Police Station pretending to be helping the Police in searching for the missing bag containing the phones. A3 later went to the witnesses, took the bag and gave them some of the mobile phones and left with the rest. Witnesses alerted some informants and they brought the phones to the Police Station and led the police to arrest A3. Police investigations led to the arrest of A4 from his hide out. In his caution statement he told police that he followed them to the scene and only helped them packed the phones into a bag which was carried by A1. After investigation, accused persons were charged with the offences and put before this honorable Court.

EVIDENCE OF THE PROSECUTION WITNESSES

PW1 who is also the complainant testified that his name is Daniel Osei, he is a trader and resides at Dansoman, Accra. He continued that he sells mobile phones at Kwame Nkrumah Circle. That on 13/11/2023 at about 10:00pm, he returned from meeting with one Daniel Dodoo and other trader, and they decided to sell through the night as they usually do. That he was with Daniel Dodoo on his show glass when a group of boys numbering about six wielding cutlasses and scissors attacked them.

According to PW1, A1 hit his hand on his show glass and broke it. That particles of the glass fell on his eyes so he quickly went and searched for water to wash his face. That when he opened his eyes, they had packed all the phones from the show glass into a bag and were threatening to stab anyone who attempted to go near. That he rushed to the Holy Gardens Police Station to call the police but when they came back, they had bolted but they traced them to the Neoplan station area, where he heard a suspect has been arrested. That he got there and saw Faisal Hadi, (A1) the one who broke his show glass. That he joined the police and they brought him to the Holy Gardens Police Station and he lodged a complaint.

PW2, gave his name as Daniel Dodoo, that he is a trader and lives at Adabraka, Accra. He further testified that on 13/11/2023 at about 10:00pm they returned from a meeting and decided to sell in the night. That he was behind the show glass which the mobile phones were displayed for customers; and a group of young boys numbering about six came directly to the show glass and one of them who was having a bag at his back hit the glass with his hand and broke the glass which even spread on his face. That he turned to clean his face, before he raised his head, he saw them packing the phones in the bag. So, he rushed to the police station to inform them about what was happening and one officer quickly followed him to the scene but they did not meet them. PW2 continued that he joined the officer to Neoplan station Circle, in search of the culprits where they had an information that one of them has been arrested and taken to the Holy Gardens Police Station. That they turned and went back to the police station where he realised that the one arrested was actually the one who broke the show glass with his hand and took the bag containing the phones they packed.

PW3, Theresa Asamoah also testified that she is a trader and lives at Dansoman, Accra. That on 13/11/2023 at about 10:00pm, she was at her shop when she saw a group of boys numbering about six wielding cutlasses and scissors. That they came to a show glass close to her shop. Suddenly Faisal Hadi (A1) hit his hand on the show glass containing mobile phones and broke it. That they started parking the phones in the show glass into a bag which was carried by A1 and others too were holding some of the phones in their hands. According to PW3, she wanted to go near to the scene to ask what the problem was but A1 threatened to stab her with scissors which he was holding, so she went back. That after they packed the phones, they all took to their heels and bolted.

PW4, the investigator herein Detective Seargeant Evans Obeng Mensah stationed at Holy Gardens Police Station Accra testified that on 13/11/2023, at about 10:00pm, Daniel Osei rushed to the Holy Gardens Police Station to inform Police that, a group of young men wielding cutlasses and scissors attacked him and some traders at the road side. That he and Daniel Osei rushed to the scene which was close to the Holy Gardens Police Station but the suspects bolted before the arrival of police. That they were traced and with the help of third accused person Yaw Addo, first accused person Faisal Hadi was arrested together with scissors which he used at the scene of robbery. That a statement was obtained from the complainant when he went to the Holy Garden Police Station to lodge a case.

PW4 further testified that Yaw Addo (A3) collected the bag containing mobile Phones from Al and gave it to someone to hide for him which he later went to collect and distributed the phones to his friends. That Esther Benson and Kwadwo Antwi went to inform an informant about the phones Yaw Addo was sharing and subsequently led to his arrest. That further investigations led to the arrest of A2 and A4 from their hide outs at Avenor who at the time of their arrest had sold the phones they had in their possession.

PW4 continued that the accused persons were captured in a video which was intercepted by police. He tendered the pendrive containing video in evidence as exhibit 'J'. He also tendered in evidence the following:

Caution statement of 1st accused person - Exhibit A

Caution statement of 2nd accused person – Exhibit B

Caution statement of 3rd accused person – Exhibit C

Caution statement of 4th accused person - Exhibit D

Charge statement of 1st accused person – Exhibit E

Charge statement of 2nd accused person – Exhibit F

Charge statement of 3rd accused person – Exhibit G

Charge statement of 4th accused person – Exhibit H

Thereafter, the prosecution closed its case.

After the close of the case of the prosecution, the Court examined the evidence of the prosecution witnesses to determine whether a prima facie case had been made by the prosecution to warrant the accused persons to open their defence. The Court then gave a ruling that a prima facie case had been made and the duty of the accused persons was to raise a reasonable doubt in the case of the prosecution. In view of that the accused persons were called upon to enter into their defence, after the options available to them were explained to them. The Court also reminded the accused persons herein of the charges against them.

The case was therefore adjourned for the accused persons to decide the option to choose. On the next adjourned date, the 1st and 2nd accused persons told the Court that they will

not give evidence whilst the 3rd and 4th accused persons also told the Court that they do not have anything to say.

The Court further asked the accused persons herein if any of them wanted to call a witness and all four accused persons present answered in the negative. The hearing was accordingly ended by the Court.

LEGAL ISSUES

The legal issues to be determined are:

1. *Whether or not the 1st, 2nd, and 4th accused persons herein together with the other accused persons at large did agree to act together with a common purpose to commit robbery.*
2. *Whether or not the 1st, 2nd, and 4th accused persons herein together with the other accused persons at large did rob the complainant herein of his twenty-six (26) pieces of iPhone valued GHS34,600.00 and fifty-nine (59) pieces of android phones valued GHS63,840.00.*
3. *Whether or not the 3rd accused person did dishonestly appropriate eighty-five (85) pieces of assorted mobile phones valued GHS97,840.00, the property of Daniel Osei.*

BURDEN AND STANDARD OF PROOF

The fundamental rule in all criminal proceedings is that the burden of establishing the guilt of the accused person is on the prosecution and the standard of proof required by the prosecution should be proof beyond reasonable doubt.

This being a criminal case, the prosecution bears the burden of proof to establish the guilt of the accused person beyond reasonable doubt.

Under ***Article 19(2)(c) of the 1992 Constitution***, a person charged with a criminal offence is presumed innocent until proven guilty or has pleaded guilty. This requirement is provided in ***sections 11, 13 and 15 of the Evidence Act, 1975 (NRCD 323).***

In the case of ***Asante (No.1) v. The Republic (No.1) [2017-2020] 1 SCGLR 132*** at ***143*** per Pwamang JSC, it was held that:

> *"Our law is that when a person is charged with a criminal offence it shall be the duty of the prosecution to prove his guilt beyond reasonable doubt, meaning the prosecution has a burden to lead sufficient admissible evidence such that on an assessment of the totality of the evidence adduced in Court, including that led by the accused person, the Court would believe beyond a reasonable doubt that the offence has been committed and that it was the*

accused person who committed it. Apart from specific cases of strict liability offences, the general rule is that throughout a criminal trial the burden of proving the guilt of the accused person remains with the prosecution. Therefore, though the accused person may testify and call witnesses to explain his side of the case where at the close of the case of the prosecution a prima facie case is made against him, he is generally not required by law to prove anything. He is only to raise a reasonable doubt in the mind of the Court as to his commission of the offence and his complicity in it except where he relies on a statutory or special defence."

Also, in the case of ***Republic v. Adu-Boahen & Another*** **[1993-94] 2 GLR 324-342**, per Kpegah JSC, the Supreme Court held that:

"A plea of not guilty is a general denial of the charge by an accused which makes it imperative that the prosecution proves its case against an accused person... When a plea of not guilty is voluntarily entered by an accused or is entered for him by the trial Court, the prosecution assumes the burden to prove, by admissible and credible evidence, every ingredient of the offence beyond reasonable doubt".

ANALYSIS

I shall address the first two issues together; and they are w*hether or not the 1st, 2nd and 4th accused persons herein did agree to act together with a common purpose to commit robbery; and whether or not the 1st, 2nd and 4th accused persons herein did rob the complainant of his twenty-six (26) pieces of iPhone valued GHS34,600.00 and fifty-nine (59) pieces of android phones valued GHS63,840.00.*

The accused 1st, 2nd and 4th accused persons have been charged with conspiracy to commit robbery as well as the substantive offence of robbery, contrary to ***sections 23(1) and 149 of Act 29***. Section 23(1) of Act 29 on conspiracy provides that:

> *"Where two or more persons agree to act together with a common purpose for or in committing or abetting a criminal offence, whether with or without a previous concert or deliberation, each of them commits a conspiracy to commit or abet the criminal offence."*

The essential ingredients of the offence which the prosecution must prove to succeed on the charge of Conspiracy as stated by Kyei Baffour JA sitting as an additional High Court Judge in the case of ***Republic v. Eugene Baffoe Bonnie (unreported); Suit No. CR/904/2017 delivered on 12th May, 2020***, are as follows:

i. That there were at least two or more persons.
ii. That there was an agreement to act together.
iii. That the sole purpose of the agreement to act together was for a criminal enterprise.

In the case of ***Faisal Mohammed Akilu v. The Republic [2017-2018] SCGLR 444*** the Supreme Court per Yaw Appau JSC stated on Conspiracy as follows;

> *"Conspiracy could therefore be inferred from the mere act of having taken part in the crime where the crime was actually committed. Where the conspiracy charge is hinged on an alleged acting together or in concert, the prosecution is tasked with the duty to prove or establish the role each of the alleged conspirators played in accomplishing the crime"*

Section 149 (1) of Act 29 as amended by the ***Criminal Code (Amendment) Act 2003 (Act 646)*** provides as follows:

> *"Whoever commits robbery is guilty of an offence and shall be liable upon conviction and trial summarily or on indictment, to imprisonment for a term of not less than ten (10)*

years, and where the offence is committed by the use of an offensive weapon or offensive missile, the offender shall upon conviction be liable to imprisonment for a term of not less than fifteen (15) years".

Section 150 of Act 29 further defines robbery in the following terms;

"A person who steals a thing is guilty of robbery if in and for the purpose of stealing the thing, he uses any force or causes any harm to any person, or if he uses any threat or criminal assault or harm to any person, with intent thereby to prevent or overcome the resistance of that or of other person to the stealing of the thing."

In the case of ***Behome v. The Republic [1979] GLR 112***, the Court held that

"one is only guilty of robbery if in stealing a thing he used any force or caused any harm or used any threat of criminal assault with intent thereby to prevent or overcome the resistance of his victims, to the stealing of the thing."

The Supreme Court in the case of ***Frimpong alias Iboman v. The Republic [2012] 1 SCGLR 297 at 312,*** per Dotse JSC stated the essential ingredients of the offence of robbery as follows;

i. That the accused person stole something from the victim of the robbery of which he is not the owner.
ii. That in stealing the thing, the accused person used force, harm or threat of any criminal assault on the victim.
iii. That the intention of doing so was to prevent or overcome the resistance of the victim.

iv. That this fear of violence must either be of personal violence to the person robbed or to any member of his household or family in the restrictive sense.

v. That the thing stolen must be in the presence of the person threatened.

From the evidence adduced by the prosecution witnesses, on 13/11/2023 at about 10:00pm, a group of boys numbering about six led by A1 who was holding scissors and cutlass went to his shop, broke his show glass and took away his phones. From the evidence on record A1 hit his hand on PW1's show glass and broke it.

The evidence on record also suggests that, on the instructions of A1 who used force to overpower the resistance of the persons who were present, the other accused persons except A3 packed all the phones belonging to PW1 from the show glass into a bag and A1 actually threatened to harm anyone who attempted to resist him and his boys from taking the phones away.

The evidence of PW2 and PW3 corroborated the evidence of PW1 to the extent that they saw A1 hit his hand on the show glass containing mobile phones and broke it. PW3 also testified and maintained her position under cross examination that she saw the said accused persons parking the phones in the show glass into a bag which was carried by A1 and others too were holding some of the phones in their hands. That when she attempted to get close and find out what the problem was, A1 threatened to stab her with scissors which he was holding, so she went back. That after they packed the phones, they all took to their heels and bolted.

PW4 tendered the caution and charge statements of the accused persons herein as exhibits 'A' to 'H'.

The 1st, 2nd and 4th accused persons herein in their investigation caution statements, made some admissions as far as the offences they have been charged are concerned. That they

went to the complainant's show glass and their leader broke the show glass where they helped packed all the phones from the show glass into a bag and kept some of the phones.

A careful scrutiny of the caution and charge statements of the accused persons shows that they were taken in compliance with ***section 120 of the Evidence Act, 1975 (NRCD 323)***.

Akamba JSC in the case of ***Ekow Russel v. The Republic [2016] 102 GMJ 124 SC***, stated as follows:

> *"... A confession is an acknowledgment in express words, by the accused in a criminal charge, of the truth of the main fact charged or of some essential part of it.* ***By its nature, such statement if voluntarily given by an accused person himself, offers the most reliable piece of evidence upon which to convict the accused****. It is for this reason that safeguards have been put in place to ensure that what is given as a confession is voluntary and of the accused person's own free will without fear, intimidation, coercion, promises or favours ..."* (Emphasis mine)

Moreover, exhibit 'J' being the video coverage of the incident also establishes that the accused persons herein except A3 actually robbed PW1's of his mobile phones. From exhibit 'J', A1, A2, A4 and some other boys are seen taking the phones of PW1 away after the others including A2 and A4 helped packed the phones from the show glass on the instructions of A1 who later threatened to harm anyone who attempted to prevent them from taking the phones away.

From the elements of conspiracy and robbery explained above in this judgment, the prosecution has been able to establish that indeed A1, A2, and A4 conspired to commit a crime which turned out to be robbery; and they indeed committed robbery given the evidence that they were seen in exhibit 'J' taking away PW1's phones from his show glass

with A1 who led the operation threatening anyone who attempted to prevent them from taking the phones, with harm.

However, the evidence on record on the use of scissors by A1 is not sufficient. This is because from exhibit 'J', A1 was seen threatening the people who attempted to stop him and his boys from taking the phones away, with harm. A1 and the other accused persons except A3 used force to overcome the people and bolted with the phones. However, it is not clear as to whether A1 used any weapon as it cannot be seen clearly from exhibit 'J' if he was holding scissors or any weapon. From exhibit 'J', A1 raised up his right hand in an attempt to hit the people who tried to stop him from his unlawful action. It is unclear from exhibit 'J' as to whether he was holding anything in the said hand.

Below is what ensued between A1 and PW4 when the former cross examined the latter on the alleged use of scissors.

Relevant part of the cross examination of PW4 by the 1st accused person as follows:

"Q: You said when I was arrested and brought to the police station they retrieved a scissors from me, did you find the scissors on me?

A: The scissors was handed over to me at where you were arrested including one person you stabbed with the scissors.

Q: So, did you take the scissors from me?

A: You were many so one of you gave it to me.

Q: So, who gave you the scissors?

A: The one who gave me the scissors refused to come to the police station including the one who was stabbed."

From the above piece of evidence; and the entire evidence on record, the evidence on the claim of use of scissors by A1 is insufficient as no scissors was even tendered in evidence as what was allegedly retrieved from A1. In view of the inadequate evidence on the issue of the use of weapon by A1, the Court is unable to make a finding that A1 or A2 as well as A4 used scissors or cutlasses when they overpowered the complainant to steal his phones from his show glass.

I therefore find from the evidence adduced by the prosecution witnesses that A1, A2 and A4 conspired to rob PW1 and they indeed committed the offence of robbery as they used force to overpower the complainant in order to successfully steal his phones from his show glass but there is not adequate evidence on the use of offensive weapon or missile by the said accused persons.

From the evidence on record, there is satisfactory evidence by the prosecution to indicate the agreement by A1, A2 and A4 to act together with a common purpose to commit a crime as well as the role they each played in the commission of the offence of robbery.

In relation to A3, he has been charged with the offence of stealing under ***section 124 (1) of Act 29*** which provides that: **"***A person who steals commits a second-degree felony.***"**

Section 125 of Act 29 defines Stealing as follows:

"*A person steals if he dishonestly appropriates a thing of which he is not the owner*".

In the case of ***Brobbey & Others v The Republic*** **[1982-83] GLR 608-616,** Twumasi J. stated as follows:

> *"Three essential elements of the offence of stealing become obvious and they are:*

1. *That the person charged must have appropriated the thing allegedly stolen.*
2. *That the appropriation must have been dishonest.*
3. *That the person charged must not be the owner of the thing allegedly stolen."*

It is therefore clear from the definition that a person cannot be guilty of stealing unless he or she is proved to have appropriated a thing in the first place. In addition, the appropriation must have been dishonest that is, the person charged should have had the intention to be dishonest and act in bad faith.

From the evidence on record A3 collected the bag containing the mobile phones from A1 and gave to another person to hide for him which he later went to collect and shared the phones with his friends. The said friends did not come to testify in support of this assertion by PW4.

The entire evidence on record indicates that A3 is actually the one who took the said bag and gave it to another person to keep the said bag containing the stolen phones. From the conduct of A3, he intended to take advantage of the situation otherwise he ought to have immediately taken the said bag to the police station as he assisted the police to arrest A1. However, A3 did not do so, but decided to keep the bag until he was exposed. From the evidence on record I find that A3's action amounted to dishonest appropriation as he was not the owner of the said phones.

In the case of ***Commissioner of Police v. Isaac Antwi*** **[1961] GLR 408-412,** it was held that the accused person is not required to prove anything. All that is required of him is to raise a reasonable doubt as to his guilt. This is further emphasized by ***sections 11(3) and 13(2) of the Evidence Act, 1975 (NRCD 323).***

The accused persons herein could not raise a reasonable doubt as to their guilt as they were given the opportunity to open their defence but they did not. There is sufficient evidence on record to sustain the charges against the accused persons herein.

CONCLUSION

On the totality of the evidence on record, I find that the prosecution proved their case beyond reasonable doubt against the accused persons herein. For the foregoing reasons, I pronounce the accused persons herein guilty of the charges against them; and I consequently convict them of the offences of conspiracy to commit robbery; robbery and stealing respectively.

Pre-Sentencing hearing

Court: Any plea in mitigation before sentence is passed?

Counsel for A2 and A4: In respect of A2, he is currently 22 years old and was arrested in November 2023; and that means at the time of the offence he was under the age of 21 and was therefore a young offender. Also, from the evidence adduced, it is clear that A2 was not the instigator of the incidence but was only acting under the instruction of another. Further A2 is not Ghanaian, he came to Ghana in 2023 and was only in the company of the people he

knew and was led astray. Also, A2 is a first-time offender. We also pray that the Court takes into account that A2 has spent a year and 4 months in custody and the fact that he has a four-year-old son who depends on him. Concerning A3, the evidence adduced shows that it is he who played the most instrumental role in bringing the perpetrators of the robbery to book. This shows that he had not formed a prior intention to commit any offence; also, he has already spent one year 4 months in custody. He is also a first-time offender and has two children, the youngest is 10 years old who depend on him. Under the circumstance we pray the Court considers that A2 played a diminishing role and A3 helped the police to arrest the perpetrators.

A1: We plead with the Court to forgive us. We were not intentional to commit a crime.

A4: We are praying to the Court to forgive us. I have a wife and children to take care of, the youngest amongst them is 3 years old.

Court : Are the accused persons known?

Prosecutor: No.

SENTENCING

In sentencing the accused persons, the Court takes into consideration the plea in mitigation of A1 and A4 who are not legally represented as well as the plea in mitigation by Counsel for A2 and A3. However, the definition of a young offender under ***section 60***

of the Juvenile Justice Act, 2003 (Act 653) makes it immaterial the submission that A2 was a young offender at the time of the commission of the offences for which he has been convicted. The Court has also considered the fact that the accused persons herein are first time offenders as well as the youthful ages of the accused persons. In accordance with ***Article 14(6) of the 1992 Constitution***, time spent by the accused persons in custody is considered.

In relation to A2, A3, A4 the Court has also considered the role they played particularly A3 who assisted the police to arrest A1 but acted dishonestly to take advantage of the situation. The Court further takes into consideration the fact that no physical harm was caused to the complainant and there is no sufficient evidence of any offensive weapon used by the accused persons on the complainant. The Court has also taken into consideration the fact that 20 pieces of the said phones were retrieved and released to the owner being the complainant. In relation to A1, the Court has however considered the lead role he played in instigating A2 and A4 to commit the offence of robbery under his instructions. I consequently sentence the accused persons as follows:

Count one: A1 is sentenced to serve a term of imprisonment of fourteen (14) years in hard labour. A2 and A4 are sentenced to serve a term of imprisonment of ten (10) years each, in hard labour.

Count two: A1 is sentenced to serve a term of imprisonment of fourteen (14) years in hard labour. A2 and A4 are sentenced to serve a term of imprisonment of ten (10) years each, in hard labour.

The sentences on counts 1 and 2 shall run concurrently for A1, A2 and A4.

Count three: A3 is sentenced to serve a term of imprisonment of twelve (12) months in hard labour.

Restitution Order

In accordance with ***section 147B of the Criminal and Other Offences (Procedure) Act, 1960 (Act 30)***, the accused persons are ordered to return the remaining phones which were not retrieved from them to the complainant, or pay the value of same to the complainant.

The complainant shall enforce this order through civil means.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)